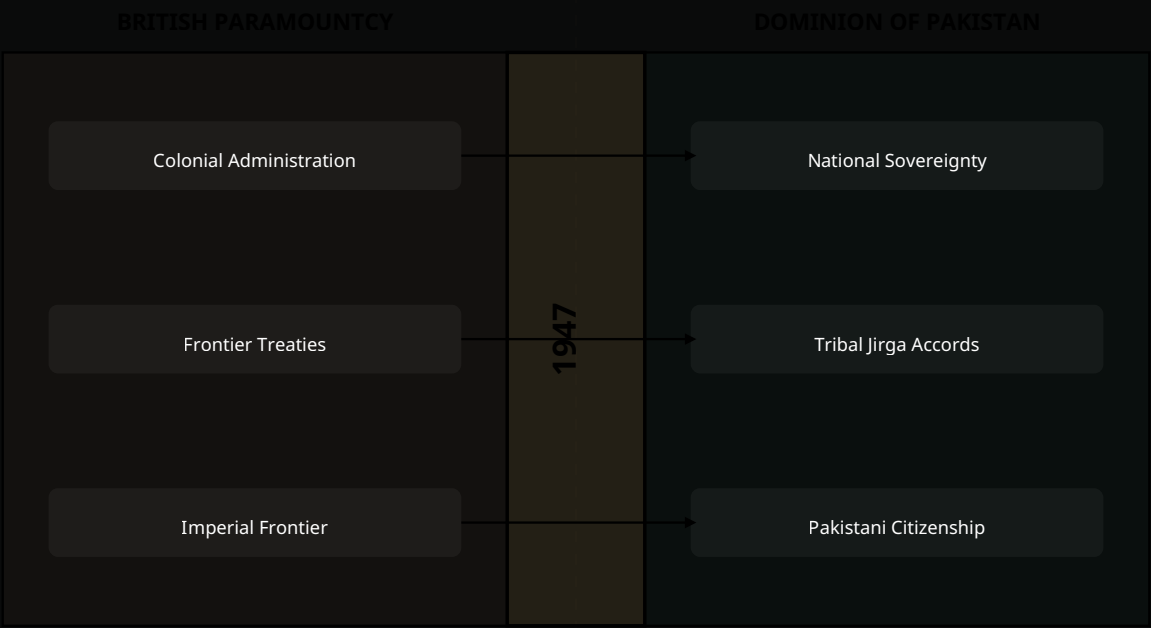


ORAKZAI DURING THE CREATION OF PAKISTAN

“1947 transformed the political world around the frontier.”

1947 changed the political map of South Asia. British rule ended. India and Pakistan emerged as independent states. For communities living in the frontier, however, independence was not simply a change of flags. It raised deeper questions. Who would govern? Which institutions would remain? What would happen to the agreements and administrative arrangements created under British rule? How would tribal communities relate to the new Pakistani state? For Orakzai communities, the transition must be understood within the wider history of the Pashtun frontier. The story was not a single moment; it was a transition.



“A conceptual visualization of the 1947 transition: from British paramountcy to Pakistani sovereignty.”

THE CONSTITUTIONAL BREAK

The legal foundation of the transition was the **Indian Independence Act 1947**. Section 7 of the Act explicitly terminated British paramountcy over the tribal areas, stating that all treaties and agreements between the Crown and tribal authorities would lapse upon independence. This created a constitutional moment where the tribal areas technically regained their pre-colonial status until new arrangements were negotiated with the state of Pakistan.¹



THE NWFP REFERENDUM VS. TRIBAL STATUS

A common historical oversimplification confuses the **1947 NWFP Referendum** with the status of the tribal areas. The referendum was a provincial vote conducted in the **Settled Districts** to determine whether the province would join India or Pakistan. The tribal areas, including the Orakzai region (then part of the Kohat Frontier Region), were not part of this formal electorate. Instead, their accession was managed through tribal jirgas and direct negotiations with the new Pakistani leadership.⁴

1947 FRONTIER STRUCTURE



DISTINCT ADMINISTRATIVE PATHS

“The administrative distinction between settled districts and tribal areas in 1947.”

INSTITUTIONAL CONTINUITY

Independence did not bring an immediate transformation of the social or administrative fabric of Orakzai. The new Pakistani state inherited the colonial **Political Agency** system and maintained the **Frontier Crimes Regulation (FCR)** to govern the tribal areas. The maliks and tribal elders continued to serve as intermediaries between the community and the state, providing a degree of institutional stability during a period of national upheaval.^{3 5}

CONTINUITY

- Tribal Jirga Institutions
- Malik Intermediary System
- Frontier Crimes Regulation
- Pashtun Customary Law
- Local Family Structures

CHANGE

- New National Sovereignty
- Pakistani Citizenship
- Withdrawal of Regular Troops
- New International Borders
- Islamic State Identity

EVIDENCE AND INTERPRETATION

Reconstructing Orakzai's experience in 1947 requires a careful balance of evidence. While national archives document the constitutional transition, oral histories preserve the lived experience of families—the sight of new flags, the memory of political discussions in the hujra,

and the local impact of regional events. No single source captures the entire story; responsible history requires comparing them all.⁶

CLAIM	DIRECT ORAKZAI EVIDENCE	REGIONAL CONTEXT	CONFIDENCE
LAPSE OF TREATIES	Institutional Transition	Independence Act 1947	HIGH
REFERENDUM SCOPE	None (Outside Electorate)	Provincial Vote (July 1947)	HIGH
ADMIN CONTINUITY	Continuity of FCR/Maliks	Jinnah's Jirga Accords	HIGH
ORAKZAI AGENCY	None (Formed 1973)	FR Kohat Administration	HIGH

AUTHOR'S REFLECTION

1947 is often remembered as a date, but dates do not experience history—people do. States are created on maps, but communities experience those changes through institutions, families, conversations, and memories. For Orakzai, the creation of Pakistan was part of a much longer frontier history. The political world changed, the state changed, and the international environment changed, but community life did not suddenly begin again on 14 August 1947. The past continued into the new country. Understanding that transition requires humility; I do not want to place every Orakzai person into one political story. I want to understand the evidence, listen to memories, and recognize the differences between a national event and its local experience. 1947 created Pakistan; the generations that followed had to live that new reality.

“1947 CREATED A NEW STATE. THE PEOPLE OF THE FRONTIER HAD TO BUILD A NEW RELATIONSHIP WITH IT.”

HISTORICAL TRANSITION ANALYSIS